

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2023-0312

Hearing Date: **January 9, 2026** **Department Eight** **9:00 a.m.**

Plaintiff Xinyao Zhou’s motion to deem requests for admission admitted is **DENIED AS MOOT**. (Code Civ. Proc., § 2033.280.) Pursuant to the parties’ agreement, defendant Hotel Winters, LLC served responses to plaintiff’s requests for admission on December 1, 2025. (Mehta decl., ¶¶ 13 & 15-16, Exhibits E & F.) To the extent that plaintiff believes defendant’s responses are inadequate, she may file a motion to compel further responses. (Code Civ. Proc., § 2033.290.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2033.280.) As defendant served its responses by the parties’ agreed deadline, this motion was not necessary. (Code Civ. Proc., § 2033.280, subd. (c); Mehta decl., ¶¶ 13 & 15-16, Exhibits E & F).

Defendant’s request for relief from waiver is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2033.280, subd. (a), 473, subd. (b).) Defendant did not file a separate motion seeking relief from waiver. (See Code Civ. Proc., § 2033.280, subd. (a) [“The court, on motion, may relieve that party from this waiver...”].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.